

If I still subscribed to Elsevier's *Lingua*, I'd demand a refund

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You may remember that, a while back, the editorial board of Elsevier's journal, *Lingua*, decided to leave the publisher to setup a new journal called *Glossa* that would be totally open access with no author-facing charges. The new journal is published by Ubiquity Press and has ongoing support from the Open Library of Humanities. Many linguistics faculty around the world declared their support for the new journal and denounced the old venue.

Elsevier continues to run *Lingua*, as is their right. However, if I were a librarian continuing to pay for this publication, I wouldn't be best pleased. Their latest issue seems indicative of a serious decline in quality in my view, although I am not an academic linguist (though I am doing some literary-linguistic work at present). I also wonder about the copyright status of some of the images reproduced in their most recent issue.

Take, for example, this just-published article: "A refutation of universal grammar". This article contains some real gems.

First: "The number of possible human languages is impossible to estimate, and it might be infinite. How could one ascertain that all possible human languages must satisfy some version of Subjacency? No matter how many sentences in how many languages UG theorists have examined,

the version of Subjacency posited on the basis of those data cannot be regarded as the law governing movement of words in human language.”

In other words, the fact that subjacency works for every language ever tested is, in this author’s opinion, not sufficient. There might be one to which it doesn’t apply. This reads like some kind of Humean scepticism in its refutation. Just because gravity on Earth has been there for every minute to date, we cannot be sure that it won’t disappear tomorrow. If this logic were true, no law of science could ever be formulated.

Second: “Of course, how the child acquires language is puzzling and needs explaining. Evidently there must be innate constraints on the child’s acquisition of language; but they cannot be those postulated in UG. What the innate constraints on language are must be investigated in other ways.”

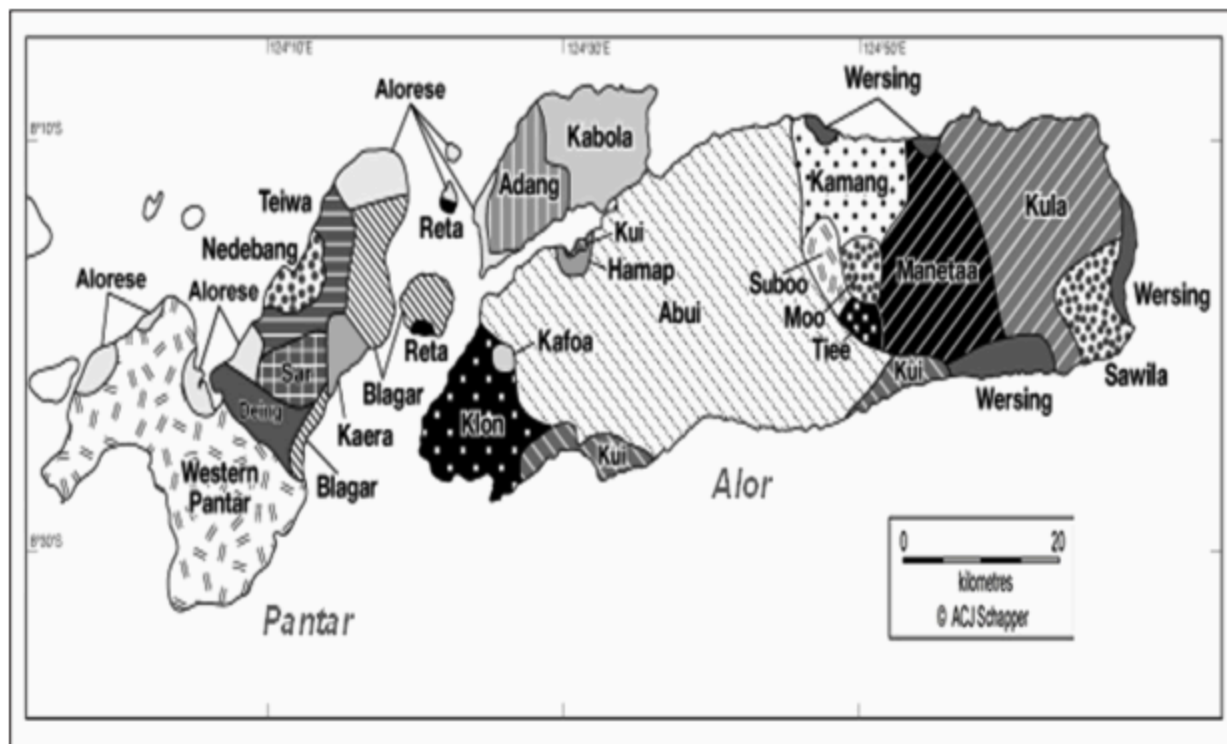
My word! If only we had thought of this before! We could start, I don’t know, maybe a whole sub-discipline dedicated to exploring it or something.

This is the level of material that Elsevier thinks it can palm off on the libraries that it charges. There are also some other classics in the recent batch such as this statement in an abstract: “Discipline does not seem to be affected by the variable of discipline.” This also demonstrates, to my mind, why continual statements by publishers that they are the “gatekeepers of quality” is a total nonsense. This should have read “Importance-marking is not affected by discipline”, which is clear if you read the article itself, but the summary highlight here is a poor tautology. Elsevier just published it, though.

Let me delve into one final matter. The article “The legend of Lamòling: Unwritten memories and diachronic toponymy through the lens of an Abui myth” claims on page 2 to reproduce a figure “Adapted from Schapper and Huber (2012, p.372)”. The citation for this points to “Schapper, A., Huber, J., 2012. State-of-the-art in the documentation of the Papuan languages of Timor, Alor, Pantar, and Kisar: a bibliography. Wacana 14 (2), 370–404.”

It is hard to track this article down today, since the journal’s website appears to be offline. However, I did eventually manage to find a PDF. This PDF states “© 2012 Faculty of Humanities, University of Indonesia”. The journal website itself, in its cached version, says that the material is under the

“Creative Commons Attribution-NonCommercial 4.0 International License”. Elsevier is a commercial entity and it does not seem to me that they can claim that this use is non-commercial. They are selling the article for \$19.95 per access. Here are the images (original and then a link to Elsevier’s):



Map 3. Papuan languages of Alor and Pantar.

The

original map from Schapper, A and Huber, J. Used here under fair dealings provisions for the purpose of criticism but also under the Creative Commons Attribution-NonCommercial 4.0 International License. Image © 2012 Faculty of Humanities, University of Indonesia.

The source of the image that Elsevier reproduced and claimed was “adapted” can be found [here](#). However... This article that is cited does not contain the image that is reproduced. That is, instead, taken from [a conference paper](#). As you can see, it is 1. identical to the map that Schapper and Huber created with just some additional arrows drawn on top of it; 2. Elsevier is claiming copyright over the image and do not note the original Creative Commons license on the article; 3. I do not see how Elsevier can legitimately claim to be able to use the non-commercial clause of the original image; 4. it does not look like Elsevier obtained permission to use the image so far as I can see – because there is no “re-used by permission of” clause and there is no note excluding the work from the copyright provision – but it is, I suppose, possible that they did so; but 5. the actual image they

reproduced does not come from an openly licensed work. The author confirms to me in personal correspondence that she was unaware that Elsevier would re-use the image and she cannot see that it has been “adapted” in any way.

Well, then. Not great progress here. I’m not surprised. However, if I were a library that had this journal as part of a package or as an individual subscription, I’d have a serious think about what those funds were supporting, both in terms of intellectual rigour and in terms of academic publishing practices.